

review of “ ‘all potentially relevant documents.’ ” *Warrick v. Superior Court* (2005) 35 Cal.4th 1011, 1016. It “is a ‘relatively low threshold for discovery.’” *Id.* at 1019.

The motions include a declaration indicating the bases for each plaintiff’s relationship with each of the officers and the sexual abuse they each suffered from each officer. Further, each declaration establishes the materiality of the records as to a pattern and propensity of conduct, the County’s knowledge of the misconduct, whether the County negligently hired, retained, trained and supervised the officers, whether failure to comply with mandatory reporting statutes would constitute negligence per se and the reasons for departure from employment relating to sexual misconduct. Thus, good cause has been established.

As to scope and time period, several of the categories are overbroad, including *all* disciplinary actions against the officers, *all* background reports and *all* communications with law enforcement relating to the officers. Appearances requested to discuss how the requests should be limited, e.g., narrowed to sexual misconduct, harassment or abuse by the specific officer and not simply anyone in that officer’s command. Should the time period be limited to that when the individual plaintiffs were in the custody of the Probation department and a specific time period before/after?

Conclusions should be redacted from reports of internal investigations. If there are any records covered by the attorney/client privilege or the work product doctrine, County needs to specify what records it believes are protected and provide sufficient information for the Court and opposing counsel to evaluate the claim of privilege.

Appearances also requested to discuss the form of a protective order and the time for compliance after an in camera review.

Grant in camera review.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405317	PICHARDO VS T.W.R. ENTERPRISES, INC.	MOTION FOR APPROVAL OF PAGA SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. No evidence that plaintiff suffered any alleged Labor Code violation within one year before the filing of the complaint or notice to the LWDA.
2. What was the amount of the individual settlement?
3. What is the justification for dismissing the class claims?
4. Release language is broader than that in the CMO (both as to definition of who is being released—do all of the released persons actually have even a possibility of liability for the PAGA penalties?--and that it applies to the aggrieved employees as well as the state and the named plaintiff).